

Food Dealers Permit Application

**** MUST BE SUBMITTED 30 DAYS PRIOR TO REQUESTING A PRE-OPENING/CHANGE OF OWNERSHIP INSPECTION. ****

Submit completed applications and supporting documentation to Food-COO@houston.tx.gov

☐ New Application/Preopening
 ☐ Change of Ownership
 ☐ Extensive Remodel
 ☐ Permit Amendment

Business Information			
Business Name/DBA:			
Business Address:			Zip Code:
Mailing Address:			Zip Code:
Business Phone:		Alternate Phone:	
Email:		Tax ID:	
Hours of Operation:			
Business Type: Retail Food: ☐ Restaurant ☐ Bar ☐ Bakery ☐ Childcare Center ☐ School ☐ Convenience Store ☐ Shared Kitchen ☐ Bed & Breakfast ☐ Boarding Home ☐ Church ☐ Concession Stand ☐ Hospital ☐ Nursing Home ☐ Grocery Store ☐ Manufacturing ☐ Food Warehouse			
Business Entity/Owner:			
Org Type: (see page 2) ☐ LLC ☐ Corporation ☐ Proprietorship ☐ Partnership			
Contact Phone:		Contact email:	
Responsible Party:(if different)			Date of Birth:
Contact Phone:		Contact email:	
Mailing Address:			
Driver's License:(number /State)			
Permit Information			
Permit Type: ☐ High ☐ Medium ☐ Low (See Page 3 for more information)			
Operations Information			
Proposed Business Start Date:			
Project Number:			
For Change of Ownership, please include: Previous Owner: _____ Account Number: _____		**Please note, permits are not transferable from one address to another or from person to person. **	

Food Inspection Plan Checklist

Establishments conducting new/remodeled construction must undergo a building plan review to assure specifications of the food preparation, storage, and sales areas of the proposed or existing food outlet meet applicable regulations. Plans must indicate the layout, equipment arrangements, mechanical plans, and construction materials of work area and the type-model of proposed equipment. See Plan Review application for further details regarding plans.

<https://www.houstonhealth.org/service/permits/food-permit/opening-food-establishment>

Special Waste

Special waste generators are required to obtain permitting from the City of Houston Fats, Oils, and Grease (FOG) program. You are a special waste generator if you own or manage a:

- Restaurant
- Establishment with an interceptor (grease trap, lint trap, oil/water separator, lift station, grit trap)
- Septic tank (residential or commercial)

For permitting requirements and fees, please visit <https://www.houstonhealth.org/services/permits/special-waste-permits/special-waste-generators> or contact FOG at (832) 393-5740.

Food Dealer's Permit Application: Supplemental Information

Applying for a Permit

Applicants must submit all necessary paperwork and payments to Houston Health Department and receive approval before obtaining a permit. Applications can be submitted via email at Food-COO@houston.tx.gov. Please note, you will receive an email with your invoice, total amount due, and instructions on how to make payment.

The fees will be determined based on Risk Based Inspection Assessment and the customer will be notified of fee amount due. Approval is based on compliance with State & Local Health Ordinances; application does not guarantee a permit will be granted.

Application must include the following: Certificate of Occupancy, Food Service Manager Certificate, Menu, copy of previously approved plans, Scope of Operations, Sales and Use Tax, Identification for Responsible Party, most recent 5 Grease Trap Manifest, HACCP plan and/or Variance request (if applicable)

Renewing a Permit

Permits expire one (1) year from the date issued. Prior to expiration, the department will mail a renewal notice to the mailing address listed on the application. The renewal form must be completed and returned to the department along with a payment for the permit renewal fee. Establishments that do not receive a notice are still responsible for completing the renewal application and submitting a renewal payment.

Terminology Definitions

Business Entity/Owner:	Any entity or individual(s) that maintain full or partial ownership control over a food establishment. See ownership documentation requirements for further clarification.
Responsible Party:	Any individual(s) who ensures the food establishment operations/practices are in accordance with all food codes and ordinances. The individuals(s) also assume legal responsibility in all cases of non-compliance.
Food Establishment:	The physical location in which food is prepared or served.
Retail Food:	An operation that offers food and/or beverages directly to a consumer for either on-premises or off-premises consumption. Establishment examples include, but not limited to, restaurants, delis, bars, convenience stores and grocery stores.
Food Product:	An operation that manufactures, packages, labels or stores food and/or beverages and <u>does not vend directly to a consumer</u> . These establishments solely wholesale their products to a third-party vendor for sale to the end-user.

Ownership Documentation

Proprietorship:	A date-stamped copy of the Certificate of Assumed Name
General Partnership:	A copy of the fully executed Partnership Agreement to include the name of each member of the partnership and percentage ownership.
Limited Partnership (LP):	A date-stamped copy of the Certificate of Limited Partnership to include the name of each member of the partnership and percentage ownership.
Limited Liability Company (LLC):	Articles of Organization (Formation documents) to include the name and percentage ownership for each member and the name for the registered agent. Date stamped copy of the Certificate of Filing and Formation filed with the Texas Secretary of State .
Corporation (Inc.):	Articles of Incorporation (Formation documents) to include the name of each officer and the name for the director and the registered agent of the corporation or named person of responsibility. Date stamped copy of the Certificate of Filing and Formation filed with the Texas Secretary of State .

Food Dealer's Permit Application: Risk Based Inspection Assessment

1. How would you describe your food service facility process? (check one)

- ☐ Low Risk – No cooking or raw or partially cooked food, only receiving, prepping, cold holding and service.
- Examples include: Pre-packaged food items (packaged meats, milk, bacon, cookies, candy, etc.)
 - Storing, stocking or warehousing of receivables only.
 - Limited food handling or no food handling.
 - Beverage service only.
 - Hazardous foods always kept at 41 °F or lower prior to service (cold-cut sandwiches, salads, scooped ice cream, processed fruit, etc.).
- ☐ Medium Risk – Same-day-service involving receiving, prepping, cooking, (one-time), hot or cold holding, and service.
- Examples include: heated/reheated self-service commercially processed foods (hot dogs, pizza, etc.)
- ☐ High Risk – Full -service with cooking, cooling, hot/cold holding, reheating, and service.
- Examples include: food requiring cooking from raw (soups, meats, fish, seafood, poultry, etc.).

2. Is food served primarily to highly susceptible populations?

☐ Yes ☐ No

3. Are any specialized processing methods utilized, such as using additives to render food non-TCS, non-continuous cooking, reduced oxygen packaging, sous vide, cook-chill?

☐ Yes ☐ No

4. Are raw or undercooked meats (cook to order) or unpasteurized juices offered?

☐ Yes ☐ No

Definitions

Highly susceptible population – Persons who are more likely than other people in the general population to experience foodborne disease because they are immunocompromised, preschool aged children, or older adults obtaining food at a healthcare or assisted living facility.

Food Manufacturer – To produce a food product or a component of a food and either package it for consumer self-service or sell to another business that will serve to consumers for resale.

Non-continuous cooking – The cooking of food in a food establishment using a process in which the initial heating of the food is intentionally halted so that it may be cooked and held for complete cooking at a later time prior to sale/service.

Specialized Processing Method – A method of preparing certain foods that include but is not limited to smoking food as a method of food preservation, curing food for safety such as sushi rice, and packaging food using reduced oxygen packaging.

Wholesale – To sell something to another individual, company, store (i.e. grocery store, convenience store, restaurant, etc.) for the purpose of resale.

Date Received: _____
Risk Category: _____

For Office Use

Reviewed By: _____

☐ Approved ☐ Rejected

Reason for rejection: _____